

關於 MRVP／MPRP 家庭子女學費豁免，建議請教育部及申訴專員釐清以下問題：

简体中文 关于 MRVP／MPRP 家庭子女学费豁免，建议请教育部及申诉专员厘清以下问题：

English Regarding tuition-fee exemptions for children of MRVP/MPRP families, the following issues are suggested for clarification by the Ministry for Education and the Ombudsman/Commissioner for Education:

1，2023 年文件究竟是法律，還是行政政策？

目前取得的文件名稱是《學費豁免政策及程序規則》（Policy and Rules of Procedure），修訂於 2023 年 6 月。應先確認它是內部政策、部長批准的指引，還是依法制定的附屬法例，不能直接稱為「2023 年新法」。

简体中文

1，2023 年文件究竟是法律，还是行政政策？

目前取得的文件名称是《学费豁免政策及程序规则》（Policy and Rules of Procedure），修订于 2023 年 6 月。应先确认它是内部政策、部长批准的指引，还是依法制定的附属法例，不能直接称为“2023 年新法”。

English

1. Is the 2023 document legislation or an administrative policy?

The document currently obtained is entitled “Policy and Rules of Procedure for the Exemption of Fees”, revised in June 2023. It should first be established whether it is an internal policy, ministerially approved guidance, or subsidiary legislation made under statutory authority. It should not simply be described as a “new law of 2023”.

2，限制 MRVP／MPRP 家庭的上位法依據是甚麼？

請指出哪一部法律、哪一條具體條文，授權制定第 4.6(e)條，限制 MRVP／MPRP 家庭的專上教育學費豁免。一般的學費豁免裁量權，與明確排除某類家庭的權限，需要分別說明。

简体中文

2，限制 MRVP／MPRP 家庭的上位法依据是什么？

请指出哪一部法律、哪一条具体条文，授权制定第 4.6(e)条，限制 MRVP／MPRP 家庭的专上教育学费豁免。一般的学费豁免裁量权，与明确排除某类家庭的权限，需要分别说明。

English

2. What is the higher-level legal basis for restricting MRVP/MPRP families?

Please identify the Act and the specific provision that authorises Rule 4.6(e), which restricts tuition-fee exemptions for post-secondary or tertiary education for MRVP/MPRP families. A general discretion to grant fee exemptions and a power to expressly exclude a defined category of families should be explained separately.

3，政策由誰制定及批准？

請確認修訂由 Board、教育部長或其他機關制定及批准，並提供批准文件、批准日期及生效日期。委員會提出建議與部長作出最終決定的權限，也應分清。

简体中文

3，政策由谁制定及批准？

请确认修订由 Board、教育部长或其他机关制定及批准，并提供批准文件、批准日期及生效日期。委员会提出建议与部长作出最终决定的权限，也应分清。

English

3. Who made and approved the policy?

Please confirm whether the revision was made and approved by the Board, the Minister for Education, or another authority, and provide the approval document, approval date and effective date. The Board's power to make recommendations and the Minister's power to take the final decision should also be clearly distinguished.

4，政策是否符合上位法律？

行政政策應在法定授權範圍內執行。應核實第 4.6(e)條是否符合《教育法》、適用的學費規例、S.L.217.17 及相關歐盟法律，不能只以「按照我們的政策」代替完整法律分析。

简体中文

4，政策是否符合上位法律？

行政政策应在法定授权范围内执行。应核实第 4.6(e)条是否符合《教育法》、适用的学费规例、S.L.217.17 及相关欧盟法律，不能只以“按照我们的政策”代替完整法律分析。

English

4. Is the policy consistent with higher-ranking law?

An administrative policy must operate within the limits of statutory authority. It should be verified whether Rule 4.6(e) is consistent with the Education Act, the applicable tuition-fee regulations, S.L. 217.17 and relevant EU law. A reference to “our policy” should not substitute for a complete legal analysis.

5，政策如何公布，有沒有過渡安排？

請說明 2023 年修訂何時、以何種方式公布或通知家庭，以及如何處理既有批准、已開始的課程和曾依賴官方資訊安排升學的家庭。

简体中文

5，政策如何公布，有没有过渡安排？

请说明 2023 年修订何时、以何种方式公布或通知家庭，以及如何处理既有批准、已开始的课程和曾依赖官方信息安排升学的家庭。

English

5. How was the policy published, and were transitional arrangements provided?

Please explain when and how the 2023 revision was published or communicated to families, and how it dealt with existing approvals, courses already commenced, and families that had relied on official information when planning their children's education.

6，根據歐盟法律，持 Employment Licence 的 MRVP／MPRP 家長，是否同樣屬於受保障的第三國勞動者？

TCN 是「第三國國民」，並非一種與 MRVP 相對的簽證類別。我們持 MRVP／MPRP 居留身份的非歐盟國民，也屬於 TCN。

歐盟 Single Permit 法律框架的適用範圍，不僅包括以工作為目的獲准居留的第三國國民，也包括符合條件、因其他目的獲准居留，但已獲准合法工作的第三國國民。因此，不能僅因我們的居留證與 Jobsplus Employment Licence 分開簽發，就認定我們不屬於相關法律保障的第三國勞動者。

應請政府確認：合法居住並持有效 Employment Licence 受僱的 MRVP／MPRP 家長，是否享有適用的勞動者平等待遇保障？如予以排除，具體法律條文及理由是甚麼？

至於這些保障如何適用於子女學費，仍須另行核實；但不能只以「你是 MRVP／MPRP，而不是 Single Permit」作為完整答案。

简体中文

6，根据欧盟法律，持 Employment Licence 的 MRVP／MPRP 家长，是否同样属于受保障的第三国劳动者？

TCN 是“第三国国民”，并非一种与 MRVP 相对的签证类别。我们持 MRVP／MPRP 居留身份的非欧盟国民，也属于 TCN。

欧盟 Single Permit 法律框架的适用范围，不仅包括以工作为目的获准居留的第三国国民，也包括符合条件、因其他目的获准居留，但已获准合法工作的第三国国民。因此，不能仅因我们的居留证与 Jobsplus Employment Licence 分开签发，就认定我们不属于相关法律保障的第三国劳动者。

应请政府确认：合法居住并持有效 Employment Licence 受雇的 MRVP／MPRP 家长，是否享有适用的劳动者平等待遇保障？如予以排除，具体法律条文及理由是什么？

至于这些保障如何适用于子女学费，仍须另行核实；但不能只以“你是 MRVP／MPRP，而不是 Single Permit”作为完整答案。

English

6. Under EU law, are MRVP/MPRP parents holding an Employment Licence also protected third-country workers?

TCN means “third-country national”; it is not a visa category opposed to MRVP. Non-EU nationals residing under MRVP/MPRP are also TCNs.

The scope of the EU Single Permit legal framework is not limited to third-country nationals admitted for the purpose of work. It also includes, where the statutory conditions are met, third-country nationals admitted for other purposes who are subsequently lawfully authorised to work. Therefore, the fact that our residence card and Jobsplus Employment Licence are issued separately should not, by itself, mean that we fall outside the relevant legal protection for third-country workers.

The Government should confirm whether an MRVP/MPRP parent who lawfully resides in Malta and is employed under a valid Employment Licence enjoys the applicable worker equal-treatment protections. If such persons are excluded, the specific legal provision and reasons should be identified.

How those protections apply to tuition fees for dependants must still be examined separately; however, “you are MRVP/MPRP and not a Single Permit holder” should not by itself be treated as a complete answer.

7，為何兩類合法勞動者的子女受到不同學費待遇？

如果兩類家長都合法居住、合法工作，請政府指出：因「獨立 Employment Licence」與「合併 Single Permit」而作不同處理的具體法律依據及合理理由。同時必須釐清，家長的勞動者權利如何適用於子女；不能直接假定所有家屬福利必須完全相同。

简体中文

7，为何两类合法劳动者的子女受到不同学费待遇？

如果两类家长都合法居住、合法工作，请政府指出：因“独立 Employment Licence”与“合并 Single Permit”而作不同处理的具体法律依据及合理理由。同时必须厘清，家长的劳动者权利如何适用于子女；不能直接假定所有家属福利必须完全相同。

English

7. Why are the children of two categories of lawful workers treated differently for tuition fees?

If both categories of parents lawfully reside and lawfully work in Malta, the Government should identify the specific legal basis and rational justification for treating a separately issued Employment Licence differently from a combined Single Permit. At the same time, it must be clarified how the parent's worker rights apply to dependants; it should not simply be assumed that every benefit available to the worker necessarily extends identically to all family members.

8，是否涉及法不溯及既往及合理期待？

2023 年前取得 MRVP，不必然代表往後所有新申請永久適用舊政策。較重要的是：是否已有確定批准、同一課程的持續豁免或明確官方承諾？家庭是否合理依賴這些資訊？政府改變待遇時，有沒有考慮法律穩定性、可預期性及過渡安排？

简体中文

8，是否涉及法不溯及既往及合理期待？

2023 年前取得 MRVP，不必然代表往后所有新申请永久适用旧政策。较重要的是：是否已有确定批准、同一课程的持续豁免或明确官方承诺？家庭是否合理依赖这些信息？政府改变待遇时，有没有考虑法律稳定性、可预期性及过渡安排？

English

8. Are non-retroactivity and legitimate expectations engaged?

Obtaining MRVP before 2023 does not necessarily mean that every future new application must permanently be governed by the old policy. The more important questions are whether there was an existing definitive approval, continuing exemption for the same course, or a clear official assurance; whether families reasonably relied on that information; and whether legal certainty, predictability and transitional arrangements were considered when the Government changed the treatment.

9，官方宣傳是否與實際政策一致？

FAQ 及 RMA 書面回覆表示，家長取得工作許可後，子女可以申請學費豁免；2023 年政策卻限制高等教育待遇。應調查官方資訊是否準確、完整、及時更新，以及是否使家庭形成合理但錯誤的理解。目前宜提出「資訊可能誤導」的疑問，不宜未經證實就指控故意隱瞞、欺詐或違約。

简体中文

9，官方宣传是否与实际政策一致？

FAQ 及 RMA 书面回复表示，家长取得工作许可后，子女可以申请学费豁免；2023 年政策却限制高等教育待遇。应调查官方信息是否准确、完整、及时更新，以及是否使家庭形成合理但错误的理解。目前宜提出“信息可能误导”的疑问，不宜未经证实就指控故意隐瞒、欺诈或违约。

English

9. Is the official public information consistent with the actual policy?

The FAQ and RMA's written responses state that, once a parent obtains work authorisation, the child may apply for a tuition-fee exemption, while the 2023 policy restricts treatment at higher-education level. It should be investigated whether the official information was accurate, complete and updated in a timely manner, and whether it caused families to form a reasonable but mistaken understanding. At this stage, it is more appropriate to raise the concern that the information may have been misleading than to allege deliberate concealment, fraud or breach without evidence.

10，為何 2023 年政策之後仍有家庭獲批？

已有 2025 及 2026 年的 MRVP+Work Permit 批准案例。請政府比較課程、MQF 等級、工作許可、家庭關係及酌情理由，解釋過往批准與今年拒絕的實質差異。過往批准不自動保證今年獲批，但值得要求具體、一致的解釋。

[简体中文](#)

10，为何 2023 年政策之后仍有家庭获批？

已有 2025 及 2026 年的 MRVP+Work Permit 批准案例。请政府比较课程、MQF 等级、工作许可、家庭关系及酌情理由，解释过往批准与今年拒绝的实质差异。过往批准不自动保证今年获批，但值得要求具体、一致的解释。

[English](#)

10. Why were some families still approved after the 2023 policy?

There are MRVP + Work Permit approval cases from 2025 and 2026. The Government should compare the course, MQF level, work authorisation, family relationship and any discretionary grounds, and explain the material differences between those earlier approvals and this year's refusals. Earlier approvals do not automatically guarantee approval this year, but they justify a request for a specific and consistent explanation.

11，同一課程續期與首次申請新課程，是否分開處理？

政策第 3.4 條既提到豁免適用於整個已註冊課程，又要求每年更新及重新考慮。應釐清同一課程續期的保障、撤銷條件，以及它與首次申請另一課程的差別。

[简体中文](#)

11，同一课程续期与首次申请新课程，是否分开处理？

政策第 3.4 条既提到豁免适用于整个已注册课程，又要求每年更新及重新考虑。应厘清同一课程续期的保障、撤销条件，以及它与首次申请另一课程的差别。

[English](#)

11. Are renewals for the same course treated differently from first applications for a new course?

Rule 3.4 of the policy states both that an exemption applies to the whole registered course and that annual renewal and reconsideration are required. It should be clarified what protection applies to renewal of the same course, under what conditions an exemption may be withdrawn, and how this differs from a first application for a different course.

12，是否真正考慮個別家庭的酌情豁免？

政策第 3.2 及 3.3 條保留人道、經濟、健康及社會理由下的全額或部分豁免。應確認 Board 是否審閱個別證據，而非僅因 MRVP／MPRP 身份便自動拒絕。

[简体中文](#)

12, 是否真正考虑个别家庭的酌情豁免?

政策第 3.2 及 3.3 条保留人道、经济、健康及社会理由下的全额或部分豁免。应确认 Board 是否审阅个别证据，而非仅因 MRVP/MPRP 身份便自动拒绝。

English

12. Were individual discretionary grounds genuinely considered?

Rules 3.2 and 3.3 preserve the possibility of full or partial exemption on humanitarian, financial, health and social grounds. It should be confirmed whether the Board examined the individual evidence rather than automatically refusing solely because of MRVP/MPRP status.

13, 拒絕決定是否提供充分理由及救濟途徑?

請說明具體適用條款、重要證據如何評估、為何不適用其他資格或酌情途徑，以及可用的重新審議、申訴或司法救濟程序和期限。

简体中文

13, 拒绝决定是否提供充分理由及救济途径?

请说明具体适用条款、重要证据如何评估、为何不适用其他资格或酌情途径，以及可用的重新审议、申诉或司法救济程序和期限。

English

13. Does the refusal give adequate reasons and identify available remedies?

Please identify the specific applicable provisions, explain how material evidence was assessed, why other eligibility or discretionary routes were not applied, and state the available reconsideration, complaint or judicial-review procedures and applicable time limits.

以上是值得要求調查及回答的問題，不是已經證實政府違法的結論。我們希望取得有法律依據、充分說明、透明且一致的處理結果。

馬耳他華人權益關注小組

简体中文

以上是值得要求调查及回答的问题，不是已经证实政府违法的结论。我们希望取得有法律依据、充分说明、透明且一致的处理结果。

马耳他华人权益关注小组

English

These are issues that warrant investigation and a reasoned response; they are not conclusions that the Government has already been proven to have acted unlawfully. We seek an outcome that is legally grounded, fully reasoned, transparent and consistent.

Malta Chinese Community Rights Concern Group